FERC ICA Oil Tariff **F.E.R.C. No. 38.3.0**
(Cancels F.E.R.C. No. 38.2.0)

[N] CANCELLATION NOTICE

AMOCO CAPLINE PIPELINE COMPANY

PROPORTIONAL TARIFF

for Volume Incentive and Non-Incentive Rates

Applying on

CRUDE PETROLEUM
AND/OR
CONDENSATE

[C] ~~The rates named in this tariff are for the trunk line transportation of crude petroleum by pipeline, subject to the Rules and Regulations herein.~~

[C] ~~**NOTE THE FOLLOWING CORRECTION:** The FERC tariff number designation in the upper right hand corner of the title page to F.E.R.C. No. 38.1.0 should have read 38.1.0 cancels 38.0.0.~~

~~Issued on 6 days' notice under authority of 18 CFR 341.14. This tariff publication is conditionally accepted subject to refund pending a 30 day review period.~~

[N] Filed in compliance with 18 CFR 341.5 (Cancellation of tariffs).

[N] Effective November 10, 2022, this tariff publication is hereby cancelled. Issued on one day's notice under authority of 18 C.F.R. 341.14. This tariff publication is conditionally accepted subject to refund pending a 30 day review period.

ISSUED NOVEMBER 8, 2022 EFFECTIVE NOVEMBER 10, 2022

[C] ~~The provisions published herein will, if effective, not result in an effect on the quality of the human environment.~~

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[C] TABLE OF RATES

[C] FROM	[C] TO	[C] Rates in Cents per Barrel of 42 United States Gallons		
		[C] BASE RATE	[C] INCENTIVE RATE (See Note 2)	[C] DRA RATE (See Note 1)
[C] St. James Station . . . .Louisiana (St. James Parrish)	[C] Collierville Station . . . Mississippi (Marshall County)	[C] 50.07	[C] 39.04	[C] 78.61
[C] Liberty Station . . . . .Mississippi (Amite County)	[C] Patoka . . . . . .Illinois (Marion County)	[C] 79.27	-	[C] 100.54
		[C] 77.87	-	[C] 99.50

[C] **NOTE 1** -Nomination on these rates will be restricted to available DRA capacity barrels which are estimated to be approximately 12,000 barrels per day*.

*Estimate based on moving crude petroleum having a viscosity of 55 SUS at 100º F

[C] **NOTE 2** -Volume incentive tariff for the transportation of a minimum monthly volume of 35kbd from St. James, Louisiana to Collierville Station, Mississippi. This rate will also apply to all barrels shipped in excess of the 35kbd minimum monthly requirement.

[C] **APPLICATION OF RATES**

Rates named in this tariff are applicable on interstate shipments to the named destination for transportation beyond by pipeline.

[C] **VISCOSITY SURCHARGE**: In addition to all other charges for transportation hereunder, all crude petroleum having a viscosity in excess of 55 Saybolt Universal Seconds (SUS) at 100 degrees Fahrenheit shall be subject to the following surcharge:

Viscosity	Charge (Cents per bbl)
SUS at 100°F*	.42 per each unit change in viscosity (rounded to nearest one hundredth of a cent)
Greater than 55	

*Based on most recent published viscosities from Operator

[C] **CHARGE FOR MARINE SPILL RESPONSE PREPAREDNESS**: As mandated by the Oil Pollution Act of 1990 (33 U.S.C. Section 1321. et. seq.), the Operator of Capline has designated the Marine Spill Response Corporation (MSRC) as the response contractor for a catastrophic release of crude petroleum at Capline's facilities at St. James, Louisiana. The MSRC receives financial support from the Marine Preservation Association (MPA). Carrier will charge an additional 4¢ per barrel for crude petroleum unloaded from barges or marine tankers into Capline facilities at St. James to all Shippers who are not members of the MPA.

[C] **UNLOADING CHARGE:** Carrier will assess an unloading charge of 8.69¢ per barrel on crude petroleum handled through its dock facilities at St. James Station, Louisiana, to those Shippers who use Carrier's dock space but do not ship on Carrier's pipeline space.

[C] ~~RULES AND REGULATIONS~~

[C] ~~5. ABBREVIATIONS AND DEFINITIONS~~

~~As used in these rules and regulations, the following terms have the following meanings:~~

~~"a.m." means a time of day after midnight and before noon.~~

~~"Barrel" means forty-two United States gallons.~~

~~"Carrier" means and refers to Amoco Capline Pipeline Company.~~

~~"Crude petroleum" means either the direct liquid products of oil wells, or a mixture of the direct liquid products of oil or gas wells, including gasoline and liquefied petroleum gases, as provided in Item 15.~~

~~"DRA" means drag reducing agent.~~

~~"F.E.R.C." means Federal Energy Regulatory Commission.~~

~~"No." means number.~~

~~"p.m." means a time of day after noon and before midnight.~~

~~"Tender" means an offer by a Shipper to the Carrier of a stated quantity of crude petroleum for transportation from a specified origin or origins to a specified destination or destinations in accordance with these rules and regulations.~~

[C] ~~10. COMMODITY~~

~~The Carrier is engaged in the transportation of crude petroleum by pipe line and will not accept any other commodity for transportation.~~

[C] ~~15. MIXTURES~~

~~(a) The indirect liquid products of oil or gas wells, including gasoline and liquefied petroleum gases, hereinafter referred to as indirect products, will be accepted and transported as a mixture with the direct liquid products of oil wells, hereinafter referred to as direct products, provided the vapor pressure of the resulting mixture does not exceed that permitted by Carrier's facilities and operating conditions.~~

~~(b) The indirect products portion of the mixture will be accepted for transportation at reception points other that the one at which the direct products portion of the same mixture is received, provided that the Consignee and destination are the same, and that operating conditions and the Carrier's facilities permit the indirect products portion to be mixed with the direct products of the same Consignee. The rate to be assessed on each portion of the mixture shall be the rate applicable from the point at which each is received.~~

~~(c) The direct and indirect products will be measured and tested separately, and must be shown separately on the tender form.~~

~~(d) Mixtures will be transported and delivered as crude petroleum. Nothing in this item is to be construed to waive provisions of Item 30 of this tariff or to require the Carrier to receive, transport and deliver unmixed indirect products, except that unmixed indirect products will be gathered for subsequent mixing with direct products in accordance with this rule where facilities exist for performing a gathering service for such products.~~

[C] ~~20. TENDERS~~

~~(a) Crude petroleum will be transported, only under a tender accepted by the Carrier from origins (or facilities connected to Carrier's gathering system when gathering service is to be performed by the Carrier) to destinations when a tariff covering the movement is lawfully in effect and on file with the Federal Energy Regulatory Commission.~~

~~(b) Carrier will only accept tenders received BEFORE 12:00 Noon Central Standard Time/ Central Daylight Savings Time, whichever is applicable, on the tenth (10th) of the month preceding the movement. Barrels nominated must be in writing. When the tenth (10th) of the month falls on a weekend or a holiday, nominations will be required prior to 12:00 Noon Central Standard Time/Central Daylight Savings Time, whichever is applicable, on the preceding workday. If space is available for current movement as part of the base nominations, a Shipper may tender crude petroleum for transportation after the 10th of the month preceding the month during which the transportation under~~

~~the tender is to begin. When there shall be tendered to the Carrier for transportation during this nomination period, more petroleum that can be currently transported, then Item 95 will apply.~~

~~*"DRA" Nominations Only*~~
~~(b) Carrier will only accept tenders received BEFORE 12:00 noon Central Standard Time/ Central Daylight Saving Time, whichever is applicable, on the eighteenth (18th) of the month preceding the movement. Barrels nominated must be in writing. When the eighteenth (18th) of the month falls on a weekend or a holiday, nominations will be required prior to 12:00 noon Central Standard Time/Central Daylight Saving Time whichever is applicable, on the preceding workday. When there shall be tendered to the Carrier for transportation during this nomination period, more petroleum that can be currently transported, then Item 95 will apply and charges for transportation will be for the nominated volumes adjusted for proration.~~

[C] ~~**25. QUANTITIES**~~
~~(a) A tender will be accepted only when the total quantity covered by such tender will be made available for transportation within the month when the tender is to begin.~~

~~(b) Quantities of not less than ten thousand barrels of crude petroleum (see note) will be accepted from facilities to which Carrier is connected, if such quantity can be so consolidated with other crude petroleum of similar characteristics as to form a batch of seventy-five thousand barrels for movement through the pipeline as an identifiable unit.~~

~~*NOTE*.-Carrier will accept quantities of not less than five thousand barrels from barges at its St. James Terminal, Louisiana, for consolidation with other crude petroleum as provided herein.~~

[C] ~~**30. SEGREGATION AND VARIATIONS IN QUALITY AND GRAVITY**~~
~~(a) No crude petroleum will be accepted for transportation except good merchantable crude petroleum of acceptable character readily susceptible of transportation through Carrier's existing facilities, and which will not materially affect the quality of crude petroleum being transported, or cause a disadvantage to any other Shippers. Crude petroleum containing in excess of two percent of sediment, water or other impurities will not be accepted.~~

~~(b) Carrier is not liable for variations in gravity or quality of crude petroleum occurring while in its custody, and is under no obligation to deliver the identical crude petroleum received, but may make delivery out of a common stream.~~

~~(c) If crude petroleum of a kind or quality not being currently transported through Carrier's facilities is tendered, Carrier will, at the request of the Shipper and to the extent permitted by its existing facilities, endeavor to segregate such crude petroleum during transportation and to make delivery of substantially the same crude petroleum at destination; provided that in such instances Carrier may require the Shipper to make such crude petroleum available to Carrier in such quantities (*Note 1*) and at such specified times as may be necessary to permit such segregated movement via its existing facilities; and provided further that Carrier shall not be liable for failure to deliver the identical crude petroleum or for any variations in the gravity or quality of crude petroleum occurring while in its custody.~~

~~*Note 1*. The quantity to be accepted and transported under the provisions of this paragraph will be determined by Carrier in accordance with current operations through its existing facilities involved in the segregated movements, but in no event shall the quantity for a single delivery be less than the minimum quantity provided in Item 25.~~

[C] ~~**32. BARGE OR TANKER RECEIPTS**~~
~~(a) Barges of less than five thousand barrels capacity will not be accepted for unloading at the terminal.~~

~~(b) Shippers shall dock their own barges or tankers directly at the docks and furnish a standby tug during barge unloading activities. Carrier will not provide any barge or tanker tugging facilities for docking barges or tanker, not barge or tanker storage facilities. No provisions will be made for barge or tanker storage facilities. No provisions will be made for barge or tanker loading, bunkering, deballasting, or water bottom treating.~~

~~(c) No pumping equipment for the unloading of crude petroleum from barges or tankers will be furnished by Carrier.~~

~~(d) Shipper shall furnish at its own expense all labor required for unloading, including, but not limited to, the connecting and disconnecting of unloading arms or hoses at the barge or tanker manifold.~~

~~(e) In no event will Carrier be subject to any liability for delay, damage, loss, or injury occasioned by or occurring in the process of docking and unloading from barges or tankers, and it will assume custody of the crude petroleum only at the time such crude petroleum is received through its custody transfer meters at the terminal.~~

[C] ~~**35. DESTINATION FACILITIES**~~
~~No duty to transport will arise until evidence satisfactory to the Carrier has been furnished that Consignee has provided necessary facilities to which Carrier is connected and has made necessary arrangements for accepting delivery of shipments promptly on arrival at destination, as provided in these rules and regulations.~~

[C] ~~**40. GAUGING, DEDUCTIONS AND ADJUSTMENTS**~~
~~(a) Quantities for receiving, delivering, assessing charges and all other purposes will be corrected to a temperature of sixty degrees Fahrenheit, after deduction of impurities shown by tests made by the Carrier prior to receipt and upon delivery. Quantities may be computed from tank tables compiled or accepted by the Carrier.~~

~~(b) Pursuant to Item 70, crude petroleum quantities transported may be adjusted to allow for inherent losses, including but not limited to shrinkage, evaporation, interface losses and normal "over and short" losses. Loss adjustments will be made on the basis of total quantities transported and shall be based on actual historical loss experience.~~

~~(c) The net quantities as determined under paragraphs (a) and (b) of this item will be the amounts accountable at destination.~~

[C] ~~**45. DIVERSION OR RECONSIGNMENT**~~
~~Crude petroleum in transport may be diverted without an additional charge to a destination other than originally specified on the tender, or crude petroleum in transport may be reconsigned without an additional charge to another Shipper at point of destination only, provided such diversion or reconsignment is made in writing by the tendered Shipper prior to delivery at original destination. This will be allowed subject to the rates, rules and regulations applicable from point of origin to point of final destination, upon condition that no out-of-line or backhaul movement will be made.~~

[C] ~~**50. STORAGE IN TRANSIT**~~
~~(a) The Carrier has working tanks required in the process of transporting crude petroleum, but has no other tankage and, therefore, does not have facilities for rendering, nor does it offer, a storage service. Provisions for storage in transit in facilities furnished by Shipper at points on Carrier's system will be permitted to the extent authorized under individual transit tariffs lawfully on file with the Federal Energy Regulatory Commission.~~

~~(b) Each Shipper will be required to furnish crude oil into inventory for their proportionate share of the line fill in such amount as deemed necessary by Carrier.~~

[C] ~~**55. DELIVERY AND DEMURRAGE**~~
~~(a) Carrier will transport and deliver crude petroleum with reasonable diligence and dispatch, but will accept no crude petroleum to be transported in time for any particular market.~~

~~(b) After any shipment has had time to arrive at destination, and on twenty-four hour notice to Consignee, Carrier may begin delivery at its current rate of pumping.~~

~~(c) Commencing after the first seven o'clock a.m. after expiration of said notice, a demurrage charge of one cent per barrel per day of twenty-four hours shall accrue on any part of said shipment offered for delivery and not taken as prescribed in paragraph (b) of this item. After expiration of said notice, Carrier's liability for loss, damage, or delay shall be that of warehouseman only.~~

[C] ~~**60. RATES APPLICABLE**~~
~~Crude petroleum in transported shall be subject to the rates in effect on date such crude petroleum is received by the Carrier.~~

[C] ~~**65. PAYMENT OF CHARGES**~~
~~The Shipper shall be responsible for payment of transportation and all other charges applicable to the shipment, and if required, shall prepay such charges or furnish guaranty of payment satisfactory to the Carrier. The Carrier will have a lien on all crude petroleum accepted for transportation to secure the payment of all charges, including demurrage charges, and may refuse to deliver crude petroleum until all charges have been paid. If said charges or any part thereof shall remain unpaid five days, computed from the first seven o'clock a.m. after written notice is mailed to Shipper of intention to enforce Carrier's lien as herein provided, or when there shall be failure to take the crude petroleum at public auction for cash, between the hours of ten o'clock a.m. and four o'clock p.m. on any day not a legal holiday, sale and the quantity, general description, and location of the crude petroleum to be sold has been~~

~~published in a daily newspaper of general circulation published in the town or city where the sale is to be held, and sent by overnight mail to Shipper. The Carrier may be a bidder and purchaser at such sale. Out of the proceeds of said sale of notice, advertisement, sale, and other necessary expense, and of caring for and maintaining the crude petroleum, and the balance, shall be held for whomsoever may be lawfully entitled thereto.~~

[C] ~~**70. LIABILITY OF CARRIER**~~
~~(a) The Carrier while in the possession of any crude petroleum, will not be liable for any loss thereof, or damage thereto or delay caused by act of God, the public enemy, quarantine, the authority of law, or of public authority, strikes, riots, insurrection, inherent nature of the goods, or the act or default of the Shipper or Consignee.~~

~~(b) Any losses of crude petroleum will be charged proportionately to each Shipper in the ratio that his crude petroleum, or portion thereof, received and undelivered at the time the loss occurs, bears to the total of all crude petroleum then in the custody of the Carrier for transportation via the lines or other facilities in which the loss occurs; and the Carrier will be obligated to deliver only the portion of such crude petroleum remaining after deducting Shipper's proportion of such loss determined as aforesaid. Transportation charges will be assessed only on a quantity delivered.~~

[C] ~~**75. TITLE**~~
~~A tender of crude petroleum shall be deemed a warranty of title by the party tendering, but acceptance shall not be deemed a representation by the Carrier as to title. The Carrier may in the absence of adequate security, decline to receive any crude petroleum which is in litigation, or as to which a dispute over title may exist, or which is encumbered by any lien of which the Carrier has notice.~~

[C] ~~**80. TIME LIMITATIONS ON CLAIMS**~~
~~As a condition precedent to recovery for loss, damage, or delay to shipments, claims must be filed in writing with the Carrier within nine months and one day after delivery of the property, or in case of failure to make delivery, then within nine months and one day after reasonable time for delivery, based on Carrier's normal operations, has elapsed; and suits shall be instituted against the Carrier only within two years and one day from the day when notice in writing is given by the Carrier to the claimant that the Carrier has disallowed the claim or any part of parts thereof specified in the notice. Where claims are not filed or suits are not instituted thereon in accordance with the foregoing provisions, no Carrier hereunder will be liable, and such claims will not be paid.~~

[C] ~~**85. COMMUNICATION FACILITIES**~~
~~Shippers may use Carrier's private communication facilities without additional charge for messages incident to their shipments. The Carrier will not be liable for non-delivery of messages, or for errors or delays in transmission or interruption of the service.~~

[C] ~~**95. NOMINATIONS AND APPORTIONMENT**~~
~~Any Shipper desiring to nominate crude petroleum for transportation shall make such nomination to the Carrier in writing on or before the Final Nomination Deadline. The Final Nomination Deadline is the tenth (10th) day of the month preceding the month during which the transportation under the nomination is to begin. If the tenth (10th) day of the month falls on a Saturday or Sunday, the final nomination deadline will change to Friday or Monday respectively. All nominations covering such proposed movements must identify the crude petroleum type, quality, quantity, and final destination point to be accepted. Unless such nomination is made, the Carrier will be under no obligation to accept crude petroleum for transportation. However, if operating conditions permit and nominations do not exceed the capacity of the system or any line segment thereof; additional nominations may be accepted by Carrier after the final nomination deadline to fill capacity. These additional nominations will be accepted only if they do not impair the movement of crude petroleum nominated before the tenth (10th) of the preceding month.~~

~~Shipper must satisfy Carrier that nominations are in good faith and that shipments can be transported in conformance with these Rules and Regulations. In administering the nominations and proration, the Carrier will use every reasonable means available to ensure that the nominations are true and realistic and will challenge any nominations which appear to be inflated or duplicated, or which substitute Equivalent Barrels for nominated viscosity factored barrels. Carrier will not accept nominations from a single Shipper greater than Carrier's allocated space (viscosity factored). Such nominations will be adjusted to meet Carrier's allocated space. Carrier may require that the Shipper provide written assurance from a responsible officer that the nominations are in good faith and no requirement or intent of Carrier's procedures in these Rules and Regulations have been violated.~~

~~In the event Carrier receives Shipper nominations for crude petroleum for a particular month which in total exceeds the capacity of the system or any line segment thereof, then Carrier shall accept and deliver only that portion of each good faith Shipper nomination which Carrier determines according to the procedures below:~~

~~(a) Space shall be allocated among Regular Shippers in proportion to their Average Regular Shipper Volume. Any excess capacity will be allocated to the Regular Shippers based on their portion of the Average Regular Shipper Volume.~~

~~(b) If a Shipper is unable to deliver crude petroleum equal to its Shipper allocation, its Shipper allocation, in the next proration month following discovery of the underutilization, will be reduced by the amount of the underutilized Shipper allocation. The allocation reduction will not exceed the Shipper's allocation, so excess reductions will be carried forward to the next proration month in which the Shipper nominates.~~

~~(c) If a Shipper releases or is otherwise unable to use any or all of its Shipper allocation, Carrier will notify all the remaining Carrier's Shippers of the available space and will redistribute the space on a first-come, first-served basis, in order to allow the Shippers to fully utilize the capacity of the Carrier's space.~~

~~(d) The following terms as used above have the following meanings:~~

~~"Average Regular Shipper Volume" means the averaged factored monthly deliveries by a Shipper during the base period, or the averaged factored monthly deliveries from the first documented month of delivery, whichever time period is less.~~

~~"Base Period" means the six (6) months period beginning six (6) months prior to the month requiring proration~~

~~"Nominations" means a written designation by a Shipper to the Carrier of an approximate quantity of crude petroleum for transportation from a specified origin point(s) to a specified destination point(s) over a period of one operating month in accordance with these rules and regulations. Nominated volumes are recalculated in terms of an "Equivalent Barrel." Viscosity factored barrel will be equated to an Equivalent Barrel by application of the factors provided by the Capline System Operator.~~

~~"Regular Shipper" means a Shipper that has a shipping record over the base period. Shippers not shipping for any month will be credited with zero barrels delivered for that month in establishing their average regular Shipper volume. Shippers will lose their regular Shipper status when they have not shipped on Carrier during a period of six (6) consecutive months.~~

[C] ~~**100. COMMON STREAM SHORTFALLS**~~

~~Carrier will initiate the following procedure when it has been notified by the Capline System operator that a common stream crude shortfall exists on Carrier's space on the Capline Pipeline System, and nominations for such crude will be required to be cut back.~~

~~1. Carrier will confirm common stream receipt and delivery shortfalls allocated to Carrier's space by the Capline System operator.~~

~~2. Carrier will calculate a projected closing inventory for all crude types for each Shipper based on nominated receipts and deliveries.~~

~~3. Carrier will then compare the projected closing inventory (as identified in "2" above) to each Shipper's minimum inventory requirement for the common stream crude experiencing the shortfall to determine the extent that the Shipper will be over/under the Shipper's minimum.~~

~~4. Carrier will then determine the individual percentage for each Shipper based on the total receipt for the common stream crude experiencing the shortfall and allocate the total projected receipt shortfall based on that percentage.~~

~~5. Carrier will then calculate an adjusted closing inventory for each Shipper, taking into account the allocated receipt shortage, and compare the adjusted inventory to the Shipper's minimum requirement for the crude experiencing the shortfall.~~

~~6. For those Shippers projected to be under their inventory requirement for the common stream crude being cut, Carrier will calculate a percent of the total under for each Shipper.~~

~~7. Carrier will then apply the percent from Step 6 above to the total Carrier space projected delivery shortfall to determine the delivery cut for each Shipper.~~

~~8. For informational purposes only, Carrier will also calculate a Shipper level projected inventory and over/under, based on the adjusted receipts and deliveries.~~

~~Note: A copy of an example of this process using this procedure can be obtained from the Carrier's scheduler located in Tulsa, Oklahoma – address: 4502 E. 41st Street, Suite 300, Tulsa, Oklahoma 74135, or by contacting the BP Tulsa Control Center's main telephone number: 918-660-4300.~~

[C] ~~**105. POLICY ON REGRADES**~~

~~At such time as the Carrier conducts a book to physical reconciliation, the Carrier will adjust Shipper inventories to match the system's physical inventories. From time to time, this process will require regrades of Shipper's existing inventories. A copy of this regrade procedure can be obtained from Carrier's system scheduler at the BP Tulsa Control Center, 4502 E. 41st Street, Suite 300, Tulsa, Oklahoma 74135, or by calling the main office number in Tulsa at 918-660-4300.~~

[C] ~~**110. INVENTORY RETENTION POLICY FOR NON-SHIPPERS**~~

~~Carrier will issue a written notification via certified mail to companies who are no longer shipping (*) on Carrier's system that Shipper's crude petroleum being recorded in an inventory account must be removed by Shipper within the time period and in the manner specified below.~~

~~(* A company that is" no longer shipping" is being described as: a) a company that has issued a formal notification to Carrier that it will no longer be a Shipper on Carrier's system; or b) a company that lacks nominations in the name of the Shipper over a continuous six (6) months time period.)~~

~~The procedure to notify a Shipper who has been designated as "no longer shipping" is as follows. Carrier will issue a letter to the Shipper that according to the Carrier's books, Carrier is holding a certain volume of crude petroleum on its books in Shipper's name. Shipper will be advised in such letter that Shipper will have 30 days effective with the date of the letter to provide direction regarding the disposal of Shipper's crude petroleum. If at the end of this 30-day period, Carrier has not been contacted by Shipper, Carrier will assume title to the crude petroleum being held on its books in Shipper's name.~~

~~If Carrier has been contacted by Shipper within the initial 30-day period, Carrier will grant Shipper an additional 30 days without charge to facilitate the disposal of Shipper's inventory crude petroleum. If at the end of this 60-day period, Carrier continues to retain control of this crude petroleum, Carrier retains the right to initiate a penalty fee of $.10 per barrel, per month plus any other fees as allowed in accordance with the published tariff; such fees will be required to be paid before the crude petroleum will be released. If, however, Shipper has not disposed of such crude petroleum at the end of the 90-day period, Carrier will assume title to such crude petroleum.~~

[C] Cancel
[N] New
[W] Change in wording only